

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
PLACES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING
COUNTERFACTUAL — NEVER FILED OR ENTERED — DOES NOT
ALTER THE ACTUAL DISTRICT RECORD**

Counterfactual Post-Dissolution Release Order

United States Court of Appeals for the Fourth Circuit Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. No. SYN-CA4-26-CV-4105-CF-NEVER-OCCURRED Entered August 13, 2026

The panel dissolved its Rule 41(d)(2) stay on August 12 after authorized counsel confirmed that Blue Ember abandoned the contemplated petition for a writ of certiorari. By direction of Composite Jurist March, Composite Jurist Rowan, and Composite Jurist Slate, the clerk now releases the mandate for issuance on August 13, 2026.

This release implements the dated dissolution order. It is not a separate merits ruling, a recall, or a finding about the abandoned petition. The July 9 counterfactual judgment remains unchanged: mitigation JMOL is affirmed and the December 15, 2025 amended judgment for \$2,700,000 is affirmed. The conditional Rule 59 damages new-trial ruling remains dormant, no remand is ordered, and liability and causation are unaffected.

The clerk shall transmit the mandate to the United States District Court for the Western District of North Carolina under district docket SYN-WDNC-24-CV-0520. Any question concerning the security posted during the stay belongs to ordinary administration after issuance and does not delay transmission.

This release exists only within the grant-and-dissolution path on the marked counterfactual docket. It does not incorporate the alternate stay-denial sequence or any actual appellate event. Electronic notice is provided to Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb. The Fictional Fourth Circuit exercise clerk enters this order solely for the synthetic training record.